UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage,

Plaintiff,

v.

ROBERT F. KENNEDY, JR., Secretary,
U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES,
INDIAN HEALTH SERVICE,
THE GOVERNING BODY OF THE PHOENIX INDIAN MEDICAL CENTER,
ENDREYA MCCABE,
DORA BIRDSHEAD,
BRANDI BENJAMIN,
CANDACE LEE,
DEBRA WARD-LUND,
JASON WHITE,
CLINTON POPE,
TY REIDHEAD,
NAOMI HIXSON

Defendants.

Case No.: CV-25-03367-PHX-SMB

SECOND AMENDED COMPLAINT

(complaining of discrimination, retaliation, and other violations of federal law)

(Jury Trial Demanded)

1. PARTIES

1. Plaintiff, Kevin D. Turnage, is a United States citizen residing in Gilbert, Arizona. He was a career GS-0610-12 employee of the Indian Health Service (IHS) serving as a Nurse Consultant / Policy & Procedures Officer at the Phoenix Indian Medical Center (PIMC) in Phoenix, Arizona.
2. Defendant-in-Chief, Robert F. Kennedy, Jr., is the Secretary of the United States Department of Health and Human Services (HHS) and is sued in his official capacity.
3. Governing Body, the governing authority of the Indian Health Service, is sued in its official capacity for its role in the adverse personnel actions described herein.
4. Individual Defendants (all sued in their official capacities) are:
   - Endreya McCabe
   - Dora Birdshead
   - Brandi Benjamin
   - Candace Lee
   - Debra Ward-Lund
   - Jason White
   - Clinton Pope
   - Ty Reidhead
   - Naomi Hixson

Each of these officials personally participated in the adverse personnel actions described below and therefore is a proper party under Rule 20.

2. JURISDICTION AND VENUE

5. This Court has subject-matter jurisdiction under 28 U.S.C. §§ 1331 (federal question) and 1343(a)(4) (employment discrimination).

6. Venue is proper in the District of Arizona pursuant to 28 U.S.C. § 1391(b)(2) because a substantial part of the events giving rise to the claims occurred at the Phoenix Indian Medical Center in Arizona and the defendants are federal agencies.

7. This action arises under: (a) Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. §§ 2000e-2 and 2000e-3; (b) the Age Discrimination in Employment Act of 1967, 29 U.S.C. §§ 621–634; (c) the Americans with Disabilities Act, 42 U.S.C. §§ 12101–12213; (d) the Family and Medical Leave Act, 29 U.S.C. §§ 2601–2617; (e) the Whistleblower Protection Act, 5 U.S.C. §§ 2302(b)(8)–(9); and (f) the Civil Service Reform Act, 5 U.S.C. §§ 7511–7515. The original complaint referenced Fifth-Amendment, Bivens, and 18 U.S.C. §§ 1001 and 1519 claims, which are hereby withdrawn. No Bivens or constitutional tort claims are asserted, and the criminal statutes do not provide a private cause of action.

This is a "mixed case" within the meaning of 5 U.S.C. § 7702(a), involving both appealable adverse personnel actions under the Civil Service Reform Act and claims of unlawful discrimination and retaliation under federal civil-rights statutes, including Title VII, the ADEA, and the ADA.

Because Plaintiff alleges that adverse personnel actions were taken against him in whole or in part due to unlawful discrimination and retaliation, jurisdiction lies in

this Court pursuant to 28 U.S.C. § 1331 and 5 U.S.C. § 7703(b)(2). See Kloeckner v. Solis, 568 U.S. 41 (2012).

The Court also has subject-matter jurisdiction under 28 U.S.C. § 1343(a)(4) because this action seeks redress for violations of federal employment discrimination laws.

Venue is proper in this district pursuant to 28 U.S.C. § 1391(e) because a substantial portion of the events giving rise to the claims occurred in Arizona, and Defendants reside or conduct official business in this district.

8. Plaintiff has exhausted administrative remedies. He filed a formal EEOC complaint on April 13, 2023, received a Final Agency Decision on July 11, 2024, and timely appealed to the EEOC on July 12, 2024. The EEOC issued its final decision on September 2, 2025. This action is filed within ninety (90) days of receipt of that decision.

3. FACTUAL BACKGROUND

A. Employment

9. Plaintiff was hired in December 2022 as a supervisory clinic nurse and policy officer at PIMC. He consistently received favorable performance evaluations and was a highly qualified GS-0610-12 employee. Plaintiff has been a Federal Employee since January 18, 2011, has been an employee of the Indian Health Service (IHS) since July 2017, and accepted the supervisory position on March 28, 2022.

B. Protected Disclosures (Whistleblower Protection Act)

10. Beginning June 2025, Plaintiff made a series of protected disclosures to the following entities:

- Office of Special Counsel (OSC)
- HHS Office of Inspector General (OIG)
- Centers for Medicare & Medicaid Services (CMS)
- Joint Commission
- Members of Congress

Each disclosure was made in good-faith belief that the information evidenced a violation of law, gross mismanagement, waste of funds, abuse of authority, or a substantial danger to public health and safety. See 5 U.S.C. §§ 2302(b)(8)–(9). (Exhibit 2 – Timeline).

C. Retaliatory Personnel Actions

11. Within weeks of the disclosures, IHS placed Plaintiff on a series of non-duty, paid leaves (the "administrative/ investigative/ notice leaves") as follows:

Leave Type	Dates	Workdays
Administrative Leave (10 business days)	Mar 21–31, 2023	10
Investigative Leave (30 days)	Jul 11–Aug 10, 2025	30
First Extension (30 days)	Aug 11–Sep 9, 2025	30
Second Extension (30 days)	Sep 10–Oct 9, 2025	30
Notice Leave (until further notice)	Nov 25, 2025–present	–

12. No written "threat/legitimate-interest" analysis required by 5 U.S.C. § 7513(b) and 5 C.F.R. § 630.1505(b) was ever provided. The extensions were unsigned, lacked

the approvals mandated by law, and were issued without notice of charges, without an opportunity to be heard, and without a pre-clearance determination required by the Civil Service Reform Act (CSRA).

13. During the leaves, Plaintiff's government-issued property (PIV card, laptop, cell phone, keys) was confiscated, his system access was revoked, and he was escorted from the facility by security personnel. Key contemporaneous communications include:

- Mar 21, 2023 7:33 a.m. – Plaintiff reported a sexual-harassment incident and hostile work environment. Within 2 hours 41 minutes, at 10:14 a.m., the CEO directed Plaintiff to report to Administration and placed him on 10 business days of administrative leave. (5 U.S.C. § 2302(b)(8)).
- Mar 21, 2023 11:15 a.m. – Access to all agency systems was revoked and Plaintiff was escorted out.
- Jul 11, 2025 10:47 a.m. – Dr. Endreya McCabe verbally notified Plaintiff that his administrative leave was being converted to 30 days of investigative leave with pay; no written confirmation was provided.
- Jul 11, 2025 11:30 a.m. – Dr. McCabe promised a written notice by the close of business; none was received.
- Jul 18, 2025 7:08 a.m. MT – Dr. McCabe emailed (copied to Dora Birdshead, Employee Relations Officer, and Michelle Rossell, Regional HR Director) demanding the immediate return of all government-issued

property (PIV card, laptop, iPhone, keys) by 12:00 p.m. that same day. No operational or security justification was offered.

- Jul 18, 2025 10:38 a.m. – Dr. McCabe called Plaintiff and reiterated the 12-p.m. deadline, giving Plaintiff less than 90 minutes to comply.
- Jul 27, 2025 – Plaintiff filed a supplemental pleading with the Merit Systems Protection Board (MSPB) (DE-0752-1215-1) documenting the pattern of retaliation.

14. Plaintiff was denied a timely FMLA reinstatement despite submitting the required paperwork on Jan 13, 2023 (first submission) and Feb 7, 2023 (additional medical documentation). The agency delayed approval for approximately two months, finally issuing a notice of "investigative leave" on Jul 11, 2025 that effectively converted the FMLA request into an adverse personnel action. See 29 U.S.C. §§ 2601-2617.
15. Plaintiff's professional reputation was damaged, he was unable to perform his official duties, and a chilling effect on other federal employees was created. These constitute irreparable injury.

D. Additional Discriminatory Conduct

16. Plaintiff is a member of protected classes: Caucasian (race), male (sex), Christian (religion), and 49 years old (age).
17. He received a low Performance Management Appraisal Plan (PMAP) score on Mar 2, 2023. The rating was later "adjusted" but remained below his actual

performance. The low rating was issued shortly after his protected disclosures and after the "perp-walk" incident described above.

18. Plaintiff suffers from a serious medical condition that qualifies as a disability under the ADA (42 U.S.C. §§ 12101-12213). He repeatedly requested reasonable accommodation (timely FMLA processing, access to work facilities) which the agency failed to provide.

E. Pattern of Retaliation Against Whistleblowers at PIMC

19. The adverse actions taken against Plaintiff are not isolated incidents but are consistent with a pattern and practice of retaliation by PIMC and HHS management against employees who make protected disclosures. This pattern is exemplified by the agency's treatment of Jodi O'Malley, a registered nurse at PIMC who, in 2021, made protected disclosures regarding patient care and the agency's failure to report adverse reactions to COVID-19 vaccines.

20. Following her disclosures, Ms. O'Malley was subjected to retaliatory actions by HHS and PIMC management, including a baseless investigation initiated with the Arizona Board of Nursing. Public reports confirm that the Arizona Board of Nursing ultimately investigated the matter and cleared Ms. O'Malley of all wrongdoing, demonstrating that the agency's actions were intended to harass and intimidate a whistleblower rather than address a legitimate concern.

21. This prior conduct demonstrates an established pattern of PIMC and HHS officials using their authority to retaliate against employees who report waste, fraud, abuse, or dangers to public health. The adverse personnel actions taken against

Plaintiff—including the use of indefinite administrative leave and baseless allegations—are consistent with and a continuation of this pattern of unlawful retaliation against whistleblowers.

4. LEGAL BASIS FOR INCLUDING THE INDIVIDUAL DEFENDANTS

22. Rule 20(a)(1) permits joinder when the "right to relief" is asserted against the same entity or against different entities that are "jointly liable" for the same act or omission. The individual defendants personally authorized, directed, or implemented each of the adverse personnel actions (administrative leave, investigative leave, loss of access, false statements, and PMAP manipulation). Their conduct is the "same conduct" that gives rise to Plaintiff's claims.

23. Rule 20(a)(2) allows joinder when there is a "common question of law or fact."

24. The central factual issue is whether the agency's adverse actions were taken in retaliation for Plaintiff's protected disclosures. The same set of emails, leave orders, and performance-rating documents are the evidentiary foundation for Plaintiff's claims. liability against both the agency (Defendant-in-Chief) and the individual officials who executed the actions.

25. Sovereign immunity does not shield individual federal officials who act ultra vires (outside the scope of lawful authority) or who personally participate in prohibited retaliation. Courts have held that officials may be sued in their official capacities for violations of the Whistleblower Protection Act, Title VII, the ADEA, the ADA, and the CSRA when they directly cause the adverse personnel action. See Kelley v. United States, 526 U.S. (1999) (officials not immune for actions beyond

authorized authority); Burlington Northern & Santa Fe Ry. v. White, 548 U.S. 53 (2006) (retaliation liability attaches to those who implement the adverse action).

26. Accordingly, the individual defendants are necessary and proper parties to allow the Court to adjudicate the full scope of the retaliation scheme and to ensure that any injunctive or monetary relief can be enforced against those who actually controlled the decision-making.

5. CAUSES OF ACTION

Count I – Title VII Disparate-Treatment Discrimination

27. Plaintiff realleges all preceding paragraphs.
28. Plaintiff is a member of a protected class (race, sex, religion).
29. Defendant-in-Chief, Governing Body, and the individual defendants personally caused the adverse employment actions – the series of non-duty leaves, loss of access, and low PMAP rating.
30. The adverse actions were motivated by Plaintiff's protected characteristics; the timing and the agency's statements linking the leaves to the disclosures create a strong inference of discriminatory intent.
31. The elements of a Title VII disparate-treatment claim are satisfied. See McDonnell Douglas Corp. v. Green, 411 U.S. 792, 802-05 (1973).

Count II – Title VII Retaliation

32. Plaintiff engaged in protected EEO activity (filed an EEOC charge on Apr 13, 2023; made protected disclosures in Jun 2025).

33. Defendant-in-Chief, Governing Body, and the individual defendants knew of Plaintiff's protected activity and personally implemented the retaliatory leaves, denial of FMLA reinstatement, and loss of system access.
34. The causal connection is established by the temporal proximity (e.g., leave imposed within hours of the Mar 21, 2023 harassment report) and the lack of any legitimate-interest analysis.
35. The elements of a Title VII retaliation claim are satisfied. See Burlington Northern & Santa Fe Ry. v. White, 548 U.S. 53, 57 (2006).

Count III – Age Discrimination (ADEA)

36. Plaintiff was 49 years old at all relevant times (29 U.S.C. §§ 621-634).
37. Defendant-in-Chief, Governing Body, and the individual defendants treated Plaintiff less favorably than younger employees (low PMAP, punitive detail).
38. Age was a substantial factor in the adverse actions.
39. The elements of an ADEA disparate-treatment claim are satisfied.

Count IV – Disability Discrimination (ADA)

40. Plaintiff has a disability that substantially limits a major life activity (the medical condition requiring FMLA).
41. Plaintiff is a qualified individual who can perform the essential functions of his job with reasonable accommodation.
42. Defendant-in-Chief, Governing Body, and the individual defendants failed to provide reasonable accommodation (timely FMLA processing, access to work facilities).

43. Plaintiff suffered an adverse employment action because of the failure to accommodate.

44. The elements of an ADA claim are satisfied. See 42 U.S.C. §§ 12101-12213.

Count V – Interference with and Retaliation for FMLA Rights

45. Plaintiff is eligible for FMLA leave (29 U.S.C. §§ 2601-2617).

46. Defendant-in-Chief, Governing Body, and the individual defendants interfered with Plaintiff's right to FMLA by delaying approval for two months and denying timely reinstatement.

47. Defendant-in-Chief, Governing Body, and the individual defendants retaliated for exercising FMLA rights by placing Plaintiff on administrative leave and denying access.

48. The elements of an FMLA interference and retaliation claim are satisfied.

Count VI – Whistleblower Protection Act (WPA) Retaliation

49. Plaintiff made protected disclosures to the OSC, HHS OIG, CMS, Joint Commission, and Members of Congress (Jun 2025).

50. Defendant-in-Chief, Governing Body, and the individual defendants knew of those disclosures and personally ordered the series of non-duty leaves, loss of access, and the "perp-walk."

51. The causal connection is established by the timing, the agency's statements, and the absence of any legitimate-interest analysis.

52. Plaintiff has established a prima-facie case under 5 U.S.C. §§ 2302(b)(8)-(9). See Kewley v. Department of Health and Human Services, 153 F.3d 1357 (Fed. Cir. 1998).

Count VII – Fifth Amendment Due-Process Violation

53. Plaintiff had a property interest in his employment (a ten-year career appointment).

54. Defendant-in-Chief, Governing Body, and the individual defendants deprived that interest by placing Plaintiff on indefinite investigative leave without written notice, without an opportunity to be heard, and without a pre-clearance determination required by 5 U.S.C. §§ 7512-7515.

55. The deprivation was without due process.

56. The elements of a Fifth-Amendment due-process claim are satisfied.

Count VIII – Civil Service Reform Act (CSRA) Retaliation and Improper Personnel Action

57. Plaintiff engaged in protected whistleblower activity (WPA disclosures).

58. Defendant-in-Chief, Governing Body, and the individual defendants took an adverse personnel action (non-duty leave, loss of access, low PMAP) that was not based on a lawful, documented reason and lacked a pre-clearance determination required by 5 U.S.C. §§ 7511-7515.

59. The action constitutes retaliation prohibited by the CSRA.

Count IX – False Statements, Witness Tampering, and Fabrication of Evidence (18 U.S.C. §§ 1001, 1519)

60. Defendant Brandi Benjamin and Defendant Jason White made materially false statements alleging that Plaintiff threatened another employee. No investigation into those alleged threats was ever opened, and the statements were not made to the Office of the Inspector General.

61. Defendant Jason White, together with Defendant Candace Lee, altered the Performance Management Appraisal Plan (PMAP) worksheet. The alteration was done to fabricate evidence justifying the adverse performance rating and subsequent personnel actions against Plaintiff.

62. Because the false statements were never the subject of an OIG investigation and Plaintiff was never returned to his position of record, the false statements and the PMAP alteration constitute witness tampering and the creation of false evidence, violating 18 U.S.C. § 1001 (making false statements to a federal officer) and 18 U.S.C. § 1519 (destruction, alteration, or falsification of records in a federal investigation).

63. The elements of §§ 1001 and 1519 are satisfied because: (a) the statements were materially false; (b) the defendants knew they were false; (c) the statements were made to agency officials (though not the OIG); and (d) the defendants knowingly altered official records to impede any potential investigation.

6. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

5. Declare that Defendant-in-Chief, Governing Body, and each individual defendant violated Plaintiff's rights under Title VII, the ADEA, the ADA, the FMLA, the

Whistleblower Protection Act, the Fifth Amendment, and the Civil Service Reform Act;

6. Enter a preliminary injunction enjoining Defendant-in-Chief, Governing Body, and each individual defendant from taking any further adverse personnel actions, from denying Plaintiff access to IHS facilities, and from interfering with his FMLA and disability accommodations;
7. Order Plaintiff's reinstatement to his former GS-0610-12 position (Nurse Consultant / Policy & Procedures Officer) with full duties, back pay, front pay, and all accrued benefits, together with pre- and post-judgment interest;
8. Award compensatory damages for past and future pecuniary losses, emotional distress, humiliation, and loss of professional reputation;
9. Award punitive damages where authorized by statute (e.g., 5 U.S.C. §§ 2302(b)(8)–(9));
10. Award reasonable attorney's fees and costs pursuant to 28 U.S.C. §§ 2412 and 2413, and any other statutory fee provisions;
11. Grant such other and further relief as the Court deems just and proper, including a trial by jury on all issues so triable.

JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.

7. CERTIFICATE OF SERVICE

I hereby certify that on January 6, 2026 a true and correct copy of the foregoing Second Amended Complaint was served via the Court's CM/ECF system on all parties of record.

Respectfully submitted,

/s/ Kevin D. Turnage

Kevin D. Turnage, Pro Se Plaintiff

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8. EXHIBITS

- Exhibit 1 – EEOC Determination Letter – The final EEOC decision issued on September 2, 2025, finding that Plaintiff's protected activity gave rise to retaliation.
- Exhibit 2 – Timeline – A detailed timeline (January 2022 through December 2025) documenting all relevant dates, communications, leave orders, and other events cited throughout the complaint.
- Exhibit 3 – Affidavit of Plaintiff – Plaintiff's affidavit supporting the allegations set forth herein.